



CHAPTER 42.

An Act to amend the law with respect to the exportation of horses; and for purposes connected therewith. A.D. 1937.
—
[6th July 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subsection (1) of section one of the Diseases of Animals Act, 1910, as amended by the Exportation of Horses Act, 1914 (which relates to the prohibition of export of unfit horses in certain cases), shall have effect as though after the word “suffering” there were inserted the words—

Extension
and amend-
ment of s. 1
of 10 Edw. 7.
& 1 Geo. 5.
c. 20.
4 & 5 Geo. 5.
c. 15.

“and in any of the cases hereinafter mentioned to be in his opinion not more than eight years of age and of not less value than the respective amounts hereinafter specified.

The cases last hereinbefore referred to are where the inspector is satisfied that the horse is—

- (a) a heavy draught horse;
- (b) a vanner, mule, or jennet; or
- (c) an ass;

and the amounts above referred to, in relation to the foregoing paragraphs (a), (b) and (c) respectively, are twenty-five, twenty and three pounds, or such other amounts as may be prescribed by order of the Minister of Agriculture and Fisheries.”

A.D. 1937. And as though at the end of the subsection there were inserted the following further proviso :—

“ Provided also that the foregoing provisions of this subsection relating to age and value shall not apply in the case of any horse as to which the inspector is satisfied either—

(a) that it is intended to use the horse as a performing animal; or

(b) that the horse is registered in the stud book of a society for the encouragement of horse-breeding recognised by the Minister of Agriculture and Fisheries, and is intended to be used for breeding or exhibition purposes; or

(c) that the horse is a foal at foot accompanying such a horse as is referred to in the last foregoing paragraph.”

(2) The said section one shall have effect as though the following subsection were substituted for subsection (2) thereof :—

“(2) If any horse examined under this Act is found by the veterinary inspector to be in such a physical condition that it is cruel to keep it alive, or to be permanently incapable of being worked without suffering, the inspector shall forthwith slaughter it or cause it to be slaughtered with a mechanically operated instrument suitable and sufficient for the purpose, and no compensation shall be made to the owner of the said animal.”

Short title,
construc-
tion, cita-
tion and
commence-
ment.

2.—(1) This Act may be cited as the Exportation of Horses Act, 1937, and shall be construed as one with the Diseases of Animals Act, 1910, and the Exportation of Horses Act, 1914; and the Diseases of Animals Acts, 1894 to 1935, and this Act may be cited together as the Diseases of Animals Acts, 1894 to 1937.

(2) This Act shall come into force on the first day of October, nineteen hundred and thirty-seven.

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